

25CHCV03843 25CHCV03843

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-17

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Case Number: 25CHCV03843 Hearing Date: July 17, 2026 Dept: F46

Dept. F-46

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DEFENDANTS' MOTION TO COMPEL ARBITRATION AND/OR TO STAY
ACTION PENDING ARBITRATION

Motion filed on April 24, 2026.

MOVING PARTY: Tigran Aneian; Capital Ready Mix, Inc.
(collectively, Defendants)

RESPONDING PARTY: Gilberto Soto Aburto, Soto Ready Mix,
Inc., and Soto Concrete, Inc. (collectively, Plaintiffs)

NOTICE: OK.

RELIEF REQUESTED: Defendants seek an order compelling
Plaintiffs to arbitrate all claims before JAMS and staying this action pending
completion of the arbitration.

RULING: Continued to August 14, 2026, at 8:30 a.m. for
supplemental briefing.

DISCUSSION/ORDER

The hearing on Defendants' Motion to Compel Arbitration and/or Stay Action Pending Arbitration is CONTINUED to August 14, 2026, at 8:30 a.m. in Department F-46.

The Court is presently inclined to grant the motion without imposing Plaintiffs' requested fee conditions. The parties' submissions, however, do not adequately address the interpretation and application of the Asset Purchase Agreement's section 16.M fee provision under the circumstances presented (See *Arzate v. ACE American Insurance Co.* (2025) 108 Cal.App.5th 1191, 1200-1201 [employees asserting employment claims were required to file the arbitration demand because their agreements required them to submit those claims to arbitration and the applicable AAA-based procedures treated the claimant seeking relief as the initiating party]; cf. *Spence v. Omnibus Industries* (1975) 44 Cal.App.3d 970, 975 [in the context of an adhesion contract and AAA rules requiring the initiating party to pay the filing fee, contractor defendants who compelled arbitration after the homeowners filed suit were deemed the initiating parties and were required to pay the fee or remain in court].)

Because Plaintiffs' non-opposition was expressly conditioned on that issue and otherwise reserved their arguments concerning the motion, supplemental briefing is appropriate to reach the merits in full.

Plaintiffs may file and serve a supplemental opposition, not exceeding 15 pages, no later than August 3, 2026. The supplemental opposition must address all grounds on which Plaintiffs contend the motion should be denied or limited, including the interpretation and application of section 16.M's fee provision.

Defendants may file and serve a supplemental reply, not exceeding 10 pages, no later than August 7, 2026.

No further briefing may be filed absent leave of Court.